

23STCV17944 23STCV17944

County: los-angeles

Division: Civil Law and Motion

Department: 730

Hearing date: 2026-08-17

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Case Number: 23STCV17944 Hearing Date: August 17, 2026 Dept: 730

TENTATIVE

The

request for default judgment submitted on December 15, 2025, is DENIED for the following reasons:

Plaintiff

Sijia Chen ("Chen") did not complete Section 6, subd. (a)(6) of the JUD-100 form, listing the total amount of judgment to be entered.

In

Chen's served Statement of Damages, Chen only put Defendant Nailington Corp. ("Nailington"), on notice as to \$6,000.00 in past and future medical expenses. Chen may only recover damages totaling that upon which Chen put Nailington on notice. However, here, Chen requests \$6,055.11 in medical and 'incidental' expenses, which consist of Chen's co-pay and other medical treatment for Chen's injuries. These are all medical expenses and exceed the number upon which Nailington was on notice. The Court will not award special damages for medical expenses exceeding \$6,000.00 unless Chen serves a new statement of damages requesting a higher total.

Chen

also provided insufficient evidence to justify an award of \$85,000.00 in general damages, an award approximately 14 times greater than the requested special damages award. Generally, the Court will only award general damages 3-5 times greater than the awarded special damages absent a showing of extreme circumstances.

The OSC re entry of default judgment is continued to the court's next available date in approximately 60 days. No later than 15 days before the new hearing date, Chen is to submit a new default judgment package correcting these defects. Failure to do so may result in the imposition of sanctions, including monetary sanctions and/or dismissal